EHCP case-building checklist

A practical starting point for families in England

Stephen Mallett · SEND Navigate · Updated 2 November 2026

Stephen's stated experience is 25 years as a teacher, SENCo and Headteacher, alongside parenting two children with special educational needs. He is a SEND consultant, not a solicitor.

This is general guidance, not individual legal advice or a guarantee of assessment, an EHCP or appeal success. Start with what you already have; you do not need a perfect evidence bundle.

1. Understand the assessment test

An education, health and care needs assessment (EHC needs assessment) gathers information about a child or young person's needs. It is not the same as a decision to issue an education, health and care plan (EHCP).

Under section 36(8) of the Children and Families Act 2014, the local authority (LA) must secure an assessment if, after considering the views and evidence submitted, it is of the opinion that:

> the child or young person has or may have special educational needs; and it may be necessary for special educational provision to be made for them in accordance with an EHC plan. [1]

The assessment test asks what **may** be needed, not whether an EHCP is already definitely necessary. Explain both parts of the test using your child's actual circumstances. Evidence helps the LA decide; this checklist cannot make a refusal impossible. [1] [2]

There is no compulsory diagnosis, fixed academic gap, £6,000 school spend or set number of terms of SEN Support in this test. You do not need two years of data, a 14-day log or a private assessment before requesting an assessment. [2]

2. Gather useful educational evidence

These are examples, not a list of compulsory documents. Use relevant records you have, and ask the school or setting for missing information where practical. Do not delay a request solely to complete this list. [2]

- ☐ Note the learning, communication, sensory, physical or social/emotional difficulties affecting access to education, participation or progress.
- ☐ Add relevant progress reports, support plans, pupil passports or assess–plan–do–review records, if available.
- ☐ Describe support actually provided: what it is, how often it happens, who provides it and what difference it makes.
- ☐ Include useful work samples, attendance information or professional advice already available. Explain what each item shows, rather than sending everything.
- ☐ Record what remains difficult despite support, or why progress depends on substantial extra help. Good grades do not tell the whole story. [2]

My starting point: Main difficulty: _____
Support tried and its impact: _____

3. Describe home experiences and relevant health needs

What you notice at home can add useful context. Describe observations without assuming their cause or making a diagnosis. Distress after school can have several explanations; it does not by itself prove masking. Relevant health and developmental evidence may help explain educational needs. [2]

- ☐ Write down a few real examples: what happened, when, what preceded it, how it affected your child and what helped.
- ☐ Describe differences between settings, including the effort needed to cope and any recovery time. Include strengths and occasions when support works.
- ☐ Include relevant existing reports from, for example, a paediatrician, speech and language therapist or occupational therapist. A private report is not a prerequisite. [2]

Optional observation note — no fixed logging period required

Date and context: _____
What I directly observed: _____
What my child communicated: _____
Effect on learning, participation or daily life: _____
Support that helped / question still unanswered: _____

Do not invent, exaggerate or stage examples. Do not provoke or film distress to build evidence. Written notes and existing records can describe the concern while protecting your child's privacy and dignity. If safety is at risk, seek appropriate help rather than continuing to collect evidence.

Educational provision is not automatically “health provision”. In an EHCP, Section F contains special educational provision. Health provision is recorded separately in Section G. Sensory support or therapy should not simply be assigned to health because a health professional recommends or delivers it: health or social care provision that educates or trains is treated as special educational provision. Seek advice if its placement is disputed. [7] [9]

4. Include an authentic parent and child voice

Write a short account of your child's strengths, what matters to them, what they find difficult, what helps and what you hope support will change. Use your own words, with specific examples. You do not need a dramatic account or legal language.

- ☐ Invite your child to share views in a comfortable way: speech, writing, drawing, symbols, communication aids or supported choices.
- ☐ Record their actual words or choices where possible. Separate these from your interpretation, and explain how you obtained the views.
- ☐ If direct views are difficult to obtain, describe communication and preferences carefully. Do not write invented quotations for your child or pressure them to participate.

My child wants adults to know: _____
Something that helps: _____
A question I want the assessment to explore: _____

5. Make and keep track of the request

A parent can request an assessment directly from their home LA; school agreement is not required. Working with the school may help, but a school saying “no” is not an LA refusal decision. After compulsory school age, the request and appeal rights normally belong to the young person; get advice about support or representation where needed. [1] [2]

1. Find your home LA's SEND/EHC team contact details on its website.
2. Send a written request for an EHC needs assessment. Explain why your child has or may have SEN and why provision through an EHCP may be necessary. IPSEA has a free model letter. A particular LA form or portal is not legally compulsory. [2]
3. Attach relevant available evidence. Keep the request, attachments and proof of receipt; ask for acknowledgement.
4. Record the LA's receipt date. The decision whether to assess must normally be notified as soon as practicable and within six weeks. Limited statutory exceptions apply; ask the LA to explain any claimed exception. This is not a six-week deadline to produce a final EHCP. [3]

LA received request: _____ Normal six-week date: _____

6. If the LA refuses, identify which decision

Refusal to assess: no EHC needs assessment is agreed. The appeal concerns the section 36(8) “may” test. **Refusal to issue:** the assessment took place, but the LA decided an EHCP was not necessary. The issue-stage question is whether the necessary special educational provision will be received without a plan. Assessment does not automatically lead to an EHCP. Both refusals can be appealed. [1] [2] [4]

- ☐ Keep the written LA decision and its reasons. Check the date on the letter and the mediation contact details.
- ☐ For these refusal appeals, contact the mediation adviser within two months of the decision letter, consider mediation and obtain a certificate. Attending mediation is optional. [6]
- ☐ The Tribunal must normally **receive** your appeal by the later of **two calendar months from the date on the LA decision letter** or **one month from the date on the mediation certificate**. Do not treat this as a fixed 60-day period. [5] [8]
- ☐ Follow the current GOV.UK forms and submission instructions. For children/young people living in the community, SEND35A is used for refusal to assess and SEND35 for refusal to issue. Do not assume an online route is available for every appeal. [5]
- ☐ A complaint, further school meeting or request for the LA to reconsider does **not** pause the appeal deadline. Keep track of the appeal separately.

Letter date: _____ Certificate date: _____ Checked receipt deadline: _____

If time is short, seek prompt advice. Holiday rules and discretionary late acceptance may apply, but do not rely on an extension being granted. See IPSEA's detailed deadline guidance. [8]

Choose help that fits your next step

You can use this checklist without buying anything. IPSEA offers independent information and free model letters; your local SEND Information, Advice and Support Service (SENDIASS) can also help. If a deadline is near or the issue needs legal advice, seek timely specialist help. Do not wait for a consultancy appointment to protect an appeal deadline.

Free 30-minute consultation with Stephen

Discuss your situation and possible next steps. The call includes a written next-step summary, normally **1–2 pages**, based **only on the conversation**.

It does **not** include a document audit or review, letters, appeal grounds, a merits assessment, deadline checking or deadline-sensitive casework. Stephen does not take responsibility for monitoring or meeting deadlines through this free offer. It is not a promise that your child qualifies or that an appeal will succeed.

Book: sendnavigate.org/free-consultation

Optional paid consultation — £175

For a deeper discussion, the paid option covers **one recent document**, a **60-minute consultation** and **up to 3.5 hours of total work**, with the scope agreed before payment. Any further drafting or casework must be separately agreed; it is not included in the free call.

The existing EHCP Action Pack — £29 remains an optional self-help resource. No purchase or email signup is required to download this checklist.

Sources and current instructions

Legal and procedural sources checked 2 November 2026. Use the current official instructions when acting; this short guide cannot cover every exception or individual situation.

[1] Children and Families Act 2014, section 36 — assessment requests and legal test.
https://www.legislation.gov.uk/ukpga/2014/6/section/36

[2] IPSEA — Asking for an EHC needs assessment; includes free request template.
https://www.ipsea.org.uk/asking-for-an-ehc-needs-assessment

[3] SEND Regulations 2014, regulation 5 — six-week decision and limited exceptions.
https://www.legislation.gov.uk/uksi/2014/1530/regulation/5

[4] IPSEA — When a local authority has to issue an EHC plan.
https://www.ipsea.org.uk/when-does-a-local-authority-have-to-issue-an-ehc-plan

[5] GOV.UK — Appeal on behalf of a child or young person; current forms and submission routes.
https://www.gov.uk/appeal-ehc-plan-decision/appeal-as-a-parent

[6] IPSEA — Mediation: what you need to do.
https://www.ipsea.org.uk/mediation-what-you-need-to-do

[7] IPSEA — Enforcing Section F special educational provision.
https://www.ipsea.org.uk/enforcing-your-ehc-plan-special-educational-provision-section-f

[8] IPSEA — How to submit an appeal; deadline and holiday rules.
https://www.ipsea.org.uk/how-to-submit-an-appeal-general-advice

[9] Children and Families Act 2014, section 21 — provision that educates or trains.
https://www.legislation.gov.uk/ukpga/2014/6/section/21